

March 27, 2026

Peeroj Thakre
ph5 Architecture Inc.
#204 - 309 West Cordova Street
Vancouver, BC V6B 1E5

RE: 3550 Kingsway, Vancouver, BC V5R 5L7
Development permit application number DP-2025-00791

On behalf of the Director of Planning, your application has been approved to provide interior and exterior alterations to the existing Child Day Care Facility (DE418900) on the first and second floor, increasing the capacity for up to 127 children, a change of use from yoga studio and limited food retail to the existing Child Day Care Facility and the addition of a new outdoor play area. Operating from 7:30 am to 5:30 pm Monday to Friday in this existing mixed-used building, for a limited period of time, expiring on Sept. 11, 2027, unless extended in writing by the Director of Planning.

- * Addition of 2 classrooms of total 24 toddlers on main floor (18-36 months)
- * Addition of 16 toddlers on second floor (0-36 months)
- * Addition of 7 childcare spots (3-5 years)
- * Addition of approximately 880 sq. ft outdoor space

A permit may be issued upon the completion of the revisions and conditions noted below under items 1.0 to 2.5 of this "prior-to permit issuance" letter.

HOW TO RESPOND TO THIS LETTER

1. Write and sign a response letter.

- Explain how you addressed each condition.
- Only changes made pursuant to addressing Prior To conditions are accepted as part of your response. Ensure all changes are clearly identified.
- *Provide a complete response to avoid delays or extra fees.*

2. Ensure relevant documents have digital signatures and seals from registered professionals.

- Review requirements at vancouver.ca/permits-eplan.

3. Upload your response letter and documents.

- Log into your permit account at vancouver.ca/permit-apply.

APPLY FOR BUILDING PERMIT(S)

Apply using the Development and Building Services Centre form at vancouver.ca/contact-dbl.

Questions? Contact your Project Coordinator madelaine.merkel@vancouver.ca

- 1.0 Prior to the issuance of the Development Permit, revised digital drawings shall be submitted, to the satisfaction of the Director of Planning, clearly indicating:

Development Review Branch conditions:

- 1.1 compliance with Section 6 of the Parking By-law, including;

Note to Applicant: a minimum of 7 Class B bicycle spaces required;

- 1.2 provision of revised drawings and consolidated project stats into a clear table to indicate by-law requirements, relaxations requested and items proposed;

- i. dimension and label all dedicated parking spaces, bicycle and stroller storage if any and to update parking/ loading project stats accordingly based on number of childcare spaces being added;
- ii. technical data summary including FSR;

Note to applicant:

- i. Permanent covered outdoor space is included in FSR. See Social policy condition 1.3.
- ii. The Childcare Design Guidelines are no longer applicable. Please refer to Parking bylaw Section 7 for Passenger Space Regulations and Section 6 for Bicycle Space Regulations.
- iii. Parking calculations are specific to this proposal and should not be combined with the other daycare on site (3528 Kingsway.)

- 1.3 provision of confirmation that the dedicated parking stalls have been designated as such on site;

Landscape Review conditions:

- 1.4 provision of updated site plan and landscape plan to reflect the following:
- i. the proposed reduced planter length and width for existing Trees T1 and T2 are not supported. Revise the planter dimensions to maintain at least the existing planter footprint;
 - ii. the existing deck edges and wood planters appear to currently retain the deck grade. With the proposed removal of the deck and planters, clarify how grade will be retained along the east, west, and south sides of the outdoor play area;
 - iii. include additional grade references on the plans, particularly for the rubber play surface, artificial turf, planters, retaining walls and edging;
 - iv. label all tree ID letters/numbers on the plans and clearly identify their retention status;

Social Policy conditions:

- 1.5 provide covered space in outdoor play space expansion for weather protection;

Note to applicant: It is recommended that covered space be 15-20% of total outdoor space to ensure weather protection and functionality.

2.0 Condition(s) to be met prior to the issuance of the Development Permit:

Development Review Branch conditions:

- 2.1 Written confirmation that Building Review Branch comments under 4.3 have been acknowledged and understood, is required to be submitted as part of the “prior-to” response.
- 2.2 Written confirmation that the notification sign on the site has been removed.

Landscape Review conditions:

- 2.3 Provision of updated Arborist Report and Tree Management Plan to include the following:
- i. A City Street tree appears to be in proximity to the proposed building renovation work area. Include this tree in the Arborist Report and Tree Management Plan.
 - ii. Confirm the current street tree protection requirements for trees surrounded by concrete with Park Board Urban Forestry at PBDevelopment.Trees@vancouver.ca and incorporate the applicable protection measures into the Arborist Report and Tree Management Plan.

- iii. Arborist supervision trigger points for on site Trees T1 and T2 should include installation of the artificial turf and planters.

2.4 Provide a signed Arborist Letter of Assurance.

Engineering Services conditions:

- 2.5 Provision of copies of all non-financial charges (Statutory Right of Way, Right of Way, Covenant, Easement, Option to Purchase, and Easement and Indemnity) and legal notations listed on each title search for the development site.

3.0 Development Permit Terms:

- 3.1 The issuance of this permit does not warrant compliance with the relevant provisions of the Provincial Health & Community Care and Assisted Living Acts. The owner is responsible for obtaining any approvals required under the Health Acts. For more information on required approvals and how to obtain these, please contact Vancouver Coastal Health at 604.675.3800 or visit their offices located on the 12th floor of 601 W Broadway. Should compliance with the Health Acts necessitate changes to this permit and/or approved plans the owner is responsible for obtaining approval for the changes prior to commencement of any work under this permit. Additional fees may be required to change the plans.
- 3.2 Detailed drawings of the interior childcare facility and outdoor play space to be submitted for review by the Community Care Facilities Licensing Division for compliance with the Community Care and Assisted Living Act and Child Care Licensing Regulations.
- 3.3 Hours of operation are limited to 7:30 am – 5:30 pm Monday to Friday.
- 3.4 This permit has been issued for a time limited period and will expire on the date noted unless extended in writing by the Director of Planning. It is the applicant's responsibility to request an extension prior to the expiry date.
- 3.5 Development must meet requirements of the Community Care and Assisted Living Act, Child Care Licensing Regulations and the Adult Care Regulations prior to approval at Building Permit stage.
- 3.6 Final capacity will be determined at the Child Care Final Inspection.
- 3.7 All approved off-street parking, loading, bike, and passenger loading spaces shall be provided in accordance with the relevant requirements of the Parking By-law prior to the issuance of any required occupancy permit, or any use or occupancy of the proposed development not requiring an occupancy permit, and thereafter permanently maintained in good condition.
- 3.8 All landscaping and treatment of the open portions of the site shall be completed in accordance with the approved drawings **prior to the issuance of any required occupancy permit**, or any use or occupancy of the proposed development not requiring an occupancy permit, and thereafter permanently maintained in good condition.

Note to Applicant: In cases where it is not practical, due to adverse weather conditions or other mitigating factors, to complete the landscaping prior to occupancy of a building, the City will accept an Irrevocable Letter of Credit (amount to be determined by the City) as a guarantee for completion of the work by an agreed upon date.

- 3.9 In accordance with Protection of Trees By-law Number 9958, the removal and replacement of trees is permitted only as indicated on the approved Development Permit drawings.
- 3.10 All approved off-street parking, loading, bike, and passenger loading spaces shall be provided in accordance with the relevant requirements of the Parking By-law prior to the issuance of any required occupancy permit, or any use or occupancy of the proposed development not requiring an occupancy permit, and thereafter permanently maintained in good condition.

4.0 **Notes to Applicant:**

- 4.1 It should be noted that your Development Permit will be issued when you have complied with all the above conditions. However, if these conditions have not been complied with **on, or before June 27, 2026**, this Development Application may stand refused.
- 4.2 A new Development Application will be required for any significant changes. This approval is subject to any change in the Zoning and Development By-law or other regulations affecting the development that occurs before the permit is issuable. No permit that contravenes the by-law or regulations can be issued.
- 4.3 The following comments have been made by the Building Review Branch:

The following comments are based on the preliminary drawings submitted by ph5 Architecture Inc. on December 25, 2025, for the proposed development permit application. This is a preliminary review to identify major issues which do not comply with Vancouver Building By-law #14343 as amended (VBBL 2025).

*** VBBL 2025 is effective of September 15, 2025. Please see the following page: [Vancouver Building By-law \(CBO\) | City of Vancouver](#)**

This is considered to be Change of Major Occupancy to convert the existing Limited Retail Food (group E) to Child Care Facility (group A2) and Minor Renovation to expand existing Child Care Facility into the adjacent units #1 & #2 – 3544 Kingsway and to provide tenant improvement on the second storey with the increased number of children (up to 80) in this three-storey mixed-use building (Building 1) on this site .

The following information should be included at Building Permit (BP) Application Stage:

- i. Alteration shall not increase the non-conformity of the existing building or create non-conformity with respect to VBBL 2025. All new work shall conform to VBBL 2025. (Please note that VBBL 2025 will be amended with its new seismic requirements effective on September 15, 2026.)

- ii. ***In last 5 years, two building permits with change of major occupancy have been issued in this Building 1: BP-2024-03121 and DB-2020-02268. Please verify that your application doesn't exceed the cumulative 5-year limit for Change of Major Occupancy as per Note (2) to Flow Chart No. 2 in 11.5.2.1. In addition, due to Hazardous Index Increase from Limited Retail Food (HI 3) to Child Care Facility (HI 4) as per Table A-11.5.1.1. (3), Design Upgrade Levels are high (F4, S3, N4, A3). Please provide a code analysis report, structural assessment report, and falling hazard investigation report. F4 & N4 levels are upgrades to the entire building including exit and egress, sprinkler systems, spatial separation, building envelope, restraining falling hazards, etc.**
- iii. Cross section drawing(s) and a key plan of entire Building 1 shall be provided to verify major occupancy and suite separations as per 3.1.3.1 & 3.3.1.1.
- iv. All new work shall be of non-combustible construction as per 3.2.2 & 3.1.5 and confirm to 3.1.2.8 Daycare Facilities for Children. Smoke detectors and carbon monoxide alarms shall be provided in the suite.
- v. ***The existing elevator doesn't give access directly to the corridor leading to the day care and interior stairs are limiting the access in the suite. Please clearly demonstrate accessible path. A3 level requires the existing building to be upgraded to an acceptable level to ensure complete access to the project area as well as to the remainder of the building (public area). Also, please clarify which access provision is applied for the project (VBBL 3.8.3 vs CSA B651 for each criterion of VBBL Table 3.8.3.1.)**
- vi. ***The suite doesn't appear to comply 3.3.1.5 and 3.4.2.4. Please provide exit and washroom analysis.**
- vii. All new architectural, mechanical and electrical components are required to comply with the Energy Utilization requirements of the Vancouver Building By-law #14343. It shall conform to VBBL 10.2.1.2 and Energy Checklist shall be submitted.

*Items marked with an asterisk have been identified as serious non-conforming Building By-law issues.

Written confirmation that the applicant has read and has understood the implications of the above noted comments is required and shall be submitted as part of the "prior to" response. If a "prior to" letter is not being sent, the above comments should be sent directly to the applicant.

The applicant may wish to retain the services of a qualified Building Code consultant in case of difficulty in comprehending the comments and their potential impact on the proposal. **CP program is strongly recommended for BP application of this project unless the project scope is reduced by excluding the existing limited retail food.** Failure to address these issues may

jeopardize the ability to obtain a Building Permit or delay the issuance of a Building Permit for the proposal.

- 4.4 If this Development Application included a written notification of neighbouring property owners or other interested parties, a copy of this letter will be sent to all respondents advising them of the decision.
- 4.5 The Canadian Electrical Code regulates high voltage overhead conductor clearances from structures and dielectric liquid-filled transformer clearances from combustible building surfaces, doors, windows, and ventilation openings. All structures must have a horizontal distance of at least 3 m from existing BC Hydro high voltage overhead conductors. Combustible building surfaces, windows, doors, and ventilation openings must be located at least 6 m from dielectric liquid-filled, pole-mounted BC Hydro transformers, unless an acceptable non-combustible barrier is constructed between these transformers and combustible building surfaces, doors, windows, or ventilation openings.
- 4.6 Please make your Building Permit submission through our online web form <https://van311.ca/services/building-and-development-question>

You will be contacted by staff for cursory outstanding items, or the application will be assigned to a Project Coordinator who will contact you to process your permit. For additional information on building permit applications please visit vancouver.ca/building-permit

If you require any further assistance with your submission, please contact us at 311 <https://van311.ca/services/building-and-development-question>

Yours truly,

Madelaine Merkel | Project Coordinator
Development Review Branch
City of Vancouver | 515 W 10th AV
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MM/cg